

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-33715-2026
Date of decision: 12.06.2026

Jaffarjeet Singh

...Petitioner

Versus

State of Punjab

...Respondent

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. Dheeraj Kumar, Advocate for the petitioner.

Ms. Shiny Chopra, AAG, Punjab.

Mr. Navjot Kaur, Advocate for the complainant.

DEEPAK GUPTA, J. (ORAL)

By way of the present second petition filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioner seeks grant of anticipatory bail in FIR No.92 dated 13.04.2026 registered under Sections 126(2), 140(3), 125, 303(2), 351(1) and 324(4) of the Bharatiya Nyaya Sanhita, 2023 and Sections 25 and 27 of the Arms Act at Police Station Baghapurana, District Moga.

2. At the outset, it may be noticed that the petitioner had earlier approached this Court by filing CRM-M-25924-2026 seeking the same relief. The said petition was dismissed on merits by a detailed order dated 07.05.2026 (Annexure P-1).

3. When confronted during the course of hearing, learned counsel for the petitioner was unable to point out any subsequent event or change in circumstances arising after dismissal of the earlier petition, except that co-accused has been arrested, which could justify reconsideration of the prayer for anticipatory bail. It is well settled that a successive petition for anticipatory bail is maintainable only when there is a



substantial change in circumstances or emergence of new facts having a bearing on the entitlement of the accused to the discretionary relief. A mere repetition of grounds already considered and rejected by the Court cannot furnish a basis for entertaining a second petition seeking identical relief.

4. The matter, however, does not rest there.

5. In paragraph No.25 of the present petition, the petitioner has disclosed only the filing and dismissal of CRM-M-25924-2026 by this Court. However, learned State counsel, assisted by learned counsel appearing for the complainant, has produced a copy of the order dated 25.05.2026 passed by the Hon'ble Supreme Court of India showing that the Special Leave Petition preferred by the petitioner against the order dated 07.05.2026 was also dismissed.

6. The aforesaid fact, being directly relevant to the relief sought in the present proceedings, was required to be candidly disclosed by the petitioner. The omission to mention dismissal of the Special Leave Petition cannot be treated as an inadvertent lapse. The petitioner approached this Court seeking an equitable and discretionary relief while withholding a material fact having a direct bearing upon the maintainability and merits of the petition.

7. It is trite law that a litigant who approaches the Court must do so with clean hands and is under an obligation to make full and fair disclosure of all material facts. Suppression or concealment of material facts amounts to abuse of the process of law and dis-entitles such litigant from claiming any equitable relief from the Court.

8. Viewed from any angle, the present petition is wholly misconceived. Firstly, it is a successive petition seeking the same relief



without any change in circumstances. Secondly, the petitioner has concealed the material fact regarding dismissal of the Special Leave Petition by the Hon'ble Supreme Court. The conduct of the petitioner, therefore, amounts to misuse of the process of Court.

9. Consequently, finding no merit in the petition, the same is dismissed with costs of ₹25,000/-.

10. The costs shall be deposited by the petitioner with the District Legal Services Authority, Moga within a period of two weeks from today.

11. A copy of this order be forwarded to the Secretary, District Legal Services Authority, Moga. In the event of failure of the petitioner to deposit the aforesaid amount within the stipulated period, the Secretary, DLSA, Moga shall take appropriate steps for recovery thereof in accordance with law.

12. Pending application(s), if any, shall also stand disposed of.

12.06.2026

Yogesh

**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No